Attn: Chair, Laws and Regulations Committee
National Council on Weight and Measures
9011 S. 83rd St.
Lincoln, NE 68516

RE: Uniform Shipment Law Proposal 1/10/2025

Dear L&R Chair,

I am writing this letter in support of the proposed Uniform Shipment Law that is currently being reviewed by the NCWM. My name is Karen Claussen, and I own a small importing business in New Hampshire. Our company ships exclusively LTL freight from our warehouse using wire crates, or pallets that are custom made to fit and protect our product. We order and ship 48X40, 84X36, and 84X40 inch pallets.

Being the owner, I handle all aspects of the business, from receiving containers of product, unloading and stowing the product, packing, strapping, measuring, weighing pallets/crates, and calling in freight quotes with our logistics company. I also handle all aspects of accounting (payables and receivables). This puts me in a very unique position of seeing the whole process of LTL shipping. Since 2020, we have been experiencing multiple billing issues from our logistics company. Before 2020, the packing and shipping process was off site, so I was not as aware of the entire process (likely billing issues were happening for years before we consolidated everything to one location). In 2020, we moved all aspects of the business to New Hampshire, and I was forced to learn more than I ever wanted to know, very quickly, about the LTL industry.

Because all aspects of our business were now handled in one place, I started to notice many of the invoices from the logistics company included extra re-weigh fees, re-classification fees, and "extreme length" fees passed on from the freight companies. Please understand that these charges did not come from just one freight company, but almost every single company booked to handle our freight. I have seen anything from 30 pounds added to a pallet, all the way up to 500 pounds. Our pallets also magically grew feet longer once they left the warehouse. At first, I tried to handle the disputes of these charges on my own. It took hours of my time documenting the weight of all the product on a pallet to prove weights taken on the company scale were correct. I would supply a copy of the invoice from our pallet company (multiple times) to show what we ordered *and* received, but that never seemed enough proof for the freight companies. The added barrier of the logistics company's disinterest in helping settle our billing disputes added to the problem. Each dispute took months of emails and phone calls for me to prove our weights and measurements were correct, and then another few months to actually get the invoice corrected with the logistics company (still happening, actually).

The added fees have been anywhere from $25 up to $350+ (about every third or fourth invoice received when the problem first came to my attention). If not disputed each time, these charges would have added up to thousands of dollars by the end of each year since 2020. For a small company like ours, these unjustified added fees are absolutely unsustainable. Frustrated and out of options, I decided to contact the New Hampshire Division of Weights and Measures for help. Thank goodness they took the freight billing issues seriously!

I invited account representatives from our logistics company to measure our pallets and witness the weighing process (even offered to fly them out). I invited representatives from the freight companies to come out and inspect as well. All parties declined. Thankfully, Erik Stanton from the NH State office agreed to visit our warehouse. Erik's guidance (along with Cheryl Ayer's help and education) has been a valuable resource. Erik measured our stock pallets and inspected our floor scale on the first visit. He recommended we have the scales certified, and put us in touch with Advance Scale of Londonderry, NH, a licensed service company authorized to perform certifications in NH. A technician came to our warehouse (while Erik observed) and found that our scales were weighing spot on. They did find that the scale base was a generic brand that they could not certify to NTEP standards, so the next step was to purchase a new plate. That being accomplished, we paid to have Advance Scale return and certify the new scale. At Erik and Cheryl's recommendation, we also had the scale licensed by the State of New Hampshire. We have continued yearly certification and licensing since that time. It is my understanding that our company is one of the few small businesses in the state to have a commercial license.

You would think that would be enough to put a stop to the added re-weigh and dimension disputes, but the extra fees continued, and the infuriating process of disputing those fees continue to this day. My process now includes detailed documentation of each step along the packing process, with several photos taken of all pallets on the certified scale. Our logistics company also receives a copy of our certification and State License each year.

Without the help of Erik and Cheryl over the years, I am not sure we would stand a chance of resolving any of the billing disputes. Cheryl and Erik have received all copies of LTL disputes experienced since 2020. They know the companies involved and have done much legwork to investigate each dispute. They have been good enough to track down where the re-weighs were taken, so we have all learned just how many holes are in the process terminal to terminal. What we found in our journey is that different states have different rules about the maintenance and certification of weighing devices across the country. At times, documentation at some terminals were not sufficient enough for an investigation to take place. Here I am, trying to do everything *absolutely by the book*, only to find our disputes are the result of re-weigh and dimension inspections (done by employees of freight companies and not independent inspectors) in terminals with lax regulation of devices and/or devices without sufficient documentation for outside inspectors to start an independent inspection. It has been a very educational and disappointing deep dive into the world of LTL freight.

I am only one small business owner, trying to run our company as honestly and fairly as possible, yet this keeps happening to our company. It makes me wonder how many other small businesses out there are also having the same problems. We bill our customers for product and freight the day the freight ships (which I believe is a standard business practice) based on quotes provided by the LTL freight companies. It is a real problem when freight bills arrive several weeks later with hundreds of dollars in "extra charges" added. I do understand that some shippers are not as careful about their weights and documentation as our company has been. This is why I feel it is important to set rules *across the board* for shippers *and* freight companies alike, in order to put us all on the same footing. I believe this could go a long way to restore some trust. My hope is

that the Uniform Shipment Law Proposal could actually repair the giant chasm that currently exists between business owners like myself and LTL freight companies. Something needs to happen to repair this broken system. With several of our disputes, we found the problems were a matter of poor training or faulty use of a device (or lack of maintenance of a device) contributing to the problem. With one or two of the companies we have dealt with in the past, it feels like the added fees were an intentional way to increase the company bottom line. I continue to hold out hope, however, that there are some freight companies out there who actually want to treat small businesses fairly. Laying down some thoughtful guidelines like the ones spelled out in the Uniform Shipment Law Proposal would certainly go a long way to help the situation, in my opinion.

I appreciate your time considering this letter and hope that it helps to give the perspective of what small businesses like mine must wrestle with constantly. Unfortunately, dealing with freight issues has become the absolute worst part of running my business.

All the best,

Karen J. Claussen

Karen J. Claussen
CEO Heatlines, LLC

heatlines
Importer of Quality European Heating Products

Heatlines, LLC.
Karen Claussen
PO Box 1801 · Derry, NH 03038
Tel 603.437.1667 · Fax 603.437.4608
heatlines@comcast.net
www.heatlines.com